



POSTED:  
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BY: MA. JESSICA R. JUTIA  
SR SECRETARY



Republic of the Philippines  
Province of Surigao del Sur  
MUNICIPALITY OF CARMEN

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 89<sup>TH</sup> REGULAR SESSION OF THE 13<sup>TH</sup> SANGGUNIANG BAYAN  
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JULY 30, 2024

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

|                            |       |                                                                  |
|----------------------------|-------|------------------------------------------------------------------|
| Hon. Carlos S. Estrada     | ..... | SB Member/<br>Acting Municipal Vice- Mayor/<br>Presiding Officer |
| Hon. Nilo S. Bigno         | ..... | SB Member                                                        |
| Hon. Rencio P. Valeroso    | ..... | SB Member                                                        |
| Hon. Renato A. Calañas     | ..... | SB Member                                                        |
| Hon. Michael C. Escuyos    | ..... | SB Member                                                        |
| Hon. Carmelito E. Valeroso | ..... | SB Member                                                        |
| Hon. Tanie A. Quillano     | ..... | SB Member                                                        |

EX-OFFICIO MEMBERS:

|                              |       |                         |
|------------------------------|-------|-------------------------|
| Hon. Blandena V. Sugian      | ..... | ABC President           |
| Hon. Jeff Anthony D. Beloria | ..... | SK Federation President |

ON OFFICIAL BUSINESS:

SECTORAL REPRESENTATIVE:

|                        |       |                             |
|------------------------|-------|-----------------------------|
| Hon. Ricardo S. Iligan | ..... | IP Mandatory Representative |
|------------------------|-------|-----------------------------|

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

|                    |       |           |
|--------------------|-------|-----------|
| Hon. Elvie U. Ohao | ..... | SB Member |
|--------------------|-------|-----------|

ABSENT:

|                          |       |                                                 |
|--------------------------|-------|-------------------------------------------------|
| Hon. Harvey S. Manawatao | ..... | Municipal Vice-Mayor/<br>Acting Municipal Mayor |
|--------------------------|-------|-------------------------------------------------|

ORDINANCE NO. 13  
Series of 2024

“AN ORDINANCE REGULATING THE OPERATION OF COCKFIGHTING AND IMPOSING FEES AND  
CHARGES THEREOF AND FOR OTHER PURPOSES”

Author : Hon. Michael C. Escuyos

Enacted: All Members present

EXPLANATORY NOTE

Cockfights are part of our culture/ heritage. While it is true that cockfighting has been practiced for centuries, it does not mean, everyone is free to engage into this game. No one is allowed to hold cockfights without permit and outside in a licensed legitimate cockpit arena.

Presidential Decree No. 449 otherwise known as Cockfighting Law of 1974 is instructive about cockfighting. On the other hand, the Local Government Code of 1991 as amended is explicit, that the Sangguniang Bayan has the power to authorize and grant license for the establishment, operation and maintenance of cockpits and regulate cockfighting.

To ensure the safety of the cockfight aficionados and that cockfights shall be held only in an authorized and license cockpit arena, to enact this ordinance is deemed necessary.

**BE IT ORDAINED**, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

**Section 1. TITLE-** This ordinance shall be known as “Cockfighting Ordinance of Carmen 2024.”

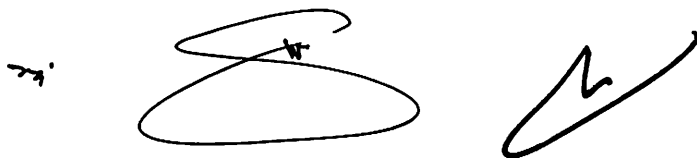
**Section 2. PURPOSE-** This Ordinance shall govern the establishment, operation and maintenance of cockpits, fees and charges, and the regulation of cockfighting.

**Section 3. DECLARATION OF POLICY-** It is hereby declared a policy of the Municipality of Carmen:

- 1) To ensure maximum development and promotion of wholesome recreation and amusement to bring about the family goals.
- 2) It is the purpose of this Ordinance to efficiently control and regulate cockfighting toward its establishments, as a national recreation, relaxation, and source of entertainment.
- 3) To remove and prevent an excessive reasonable business operation and profits consideration in the management of cockpits and instead preserve Philippine customs and traditions and enhance national identity.

**Section 4. DEFINITION OF TERMS-** as used in this ordinance the following terms shall be understood, applied, and construed as follows:

- 1) Cockfighting (Buyang)- shall embrace and mean the commonly known game or term cockfighting, derby, pintakasi, or tupada or its equivalent terms.
- 2) Cockpit (Buyangan)- the properly enclosed building, or fenced premises provided with one or more gates or doors for definite of entrance and exit licensed in accordance herewith for holding of cockfighting, derby, pintakasi, tupada, or its equivalent.
- 3) International Derby- a cockfight promotion with foreign entries.
- 4) National Derby- a cockfight promotion with national participants.
- 5) Regional/Local Derby- a cockfight promotion with participants.

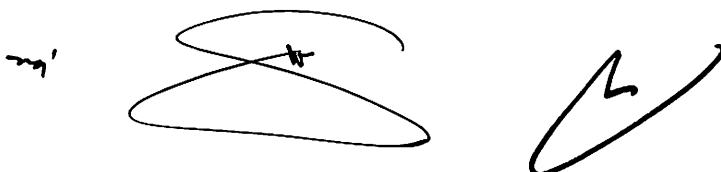


- 6) Regular cockfight- means a cockfight held on Sunday and/or Legal Holidays held in a licensed cockpit.
- 7) Special Cockfight- means a fight held on days other than Sundays, and Legal Holidays, and for special purpose, either in a licensed cockpit or in open spaces provide, there is a constructed and enclosed premises where cockfighting takes place.
- 8) Promoter- a person licensed by the Municipal Government as such who is engaged in the convening, holding and the celebration of specially programmed and arranged cockfighting like local and international derbies, or competitions, special means or matched set to or encounter, pintakasi, and ordinary fights or hack fights.
- 9) Pit Manager- a person who professionally, regularly and habitually manages a cockpit and cockfights therein. He may not be owner of the cockpit himself.
- 10) Referee (Kuymi/Sentenciador)- a person who watches and oversees the progress of the cockpit and decided its results by announcing the winner or declaring a draw or no contest game.
- 11) Bet Manager (Masyador)- refers to a person who calls and takes care of bets from the owner of both gamecocks and those of other betters before he orders commencement of the cockfight derby match maker (magtatari) and thereafter distribute winning bets after deduction certain commission.
- 12) Gaffer (Mananare)- a person knowledgeable in the technique of arming cocks with gaff or gaffs on either or both legs.
- 13) Handler (Sultador)- a person takes physical custody and control, inside the area of the fitted gamecock and who actually releases the same for actual fights and combats in a cockfight.
- 14) Gamecocks- refers to domesticated fowls, either imported or locally breed, as well as native fighting cocks indigenous to the country, especially breed, trained and condition for actual cockfighting, or for propagating or breeding purpose of eventual use in cockfighting.
- 15) Cocker (Afficionado)- a person who breeds gamecock or engages in cockfighting and who participates and bets in cockfighting as a sport, amusement, recreation, or form of relaxation.
- 16) Zoning Law or Ordinance- Either or both national or local legislations which locally arranges, prescribes, defines and apportions given political subdivision into specific land uses at present and for future projection.

**Section 5. OWNERSHIP, OPERATION AND MANAGEMENT OF COCKPIT-** The following person or entities may own, operate, or manage a cockpit:

- a) Filipino Citizens not otherwise prohibited by laws.
- b) Cooperative or Corporation, the capitalization of which is Sixty percent (60%) Filipino owned or formed, organized, established and licensed for such purpose.

**Section 6. ESTABLISHING OF COCKPIT-** only one cockpit shall be allowed in the Municipality. However, when the population of the municipality is determined by the Municipal Planning and Development Officer or by the Municipal Population Officer shall have reached One Hundred Thousand (100,000.00) an additional cockpit shall be established, maintained and operated. Provided, however, that existing right shall not be prejudiced. Provided further, that new cockpit to be established should not be nearer than one (1) kilometer radius of an existing cockpit.

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**Section 7. SITES AND CONSTRUCTION OF COCKPIT-** Cockpits shall be constructed and operated within the appropriate areas as prescribed in the Municipal Zoning Laws or Ordinances, and in accordance with PD No. 449 that no cockpit shall be established and/or operated within the radius of fifty (50) linear meters from any existing residential or commercial area, hospital, churches, schools, or other public buildings except cockpits already established and licensed before the passage of this Decree. Cockpit may also be established with and/or as adjunct of resorts, sports and/or recreational project site only recognized and registered with Philippine Tourism Authority subject to the limitations herein set forth. Before the approval or issuance of building permits for the constructions of cockpits, the plan, specification, location and vicinity of the proposed cockpit shall first be submitted to the Sangguniang Bayan who together with Municipal Engineer shall if the same has complied with the National Building Code, Ordinance and Regulations, and of the provisions thereof.

**Section 8. PLACE AND TIME AND HOLDING COCKPIT-** Regular cockfighting shall be held only in licensed cockpits.

A) For Regular Cockfights, during Sundays and Local Holidays, except on the following days when no cockfighting shall be held:

- (1) Holy Thursday
- (2) Good Friday
- (3) Philippine Independence Day (June 12)
- (4) National Heroes Day (Las Sunday of August)
- (5) Bonifacio Day (November 30)
- (6) Rizal Day (December 30)
- (7) Election/Referendum Day
- (8) Registration Day on such election/referendum

B) The Municipal Mayor may issue special permits for Special Cockfights, as provide in Section 13, under the following circumstances.

- (1) For not more than three (3) days, during Barangay Fiesta upon resolution of the Barangay Sangguniang concerned. Should special cockfights be held in a place other than a licensed cockpit, no special permit shall be granted unless an enclosed premises shall be constructed where the cockfighting may take place for the safety of spectators.
- (2) For not more than three (3) consecutive days, on the occasion of an agricultural, commercial or industrial fair, carnival or exposition, upon resolution of the Barangay Sangguniang where such fair, carnival or exposition is to be held.
- (3) For the entertainment of Foreign Dignitaries or for Tourist, or for renting Filipinos, commonly known as "Balikbayan", upon application of the host organization concerned for a period of not exceeding three (3) consecutive days.
- (4) For the support of Fund-Raising campaign for Charitable purpose upon application of the beneficiary concerned for a period not exceeding three (3) days;

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**Section 9. LICENSING OF COCKPIT-** The franchise to operate cockpit shall be granted by the Sangguniang Bayan of Carmen, Surigao del Sur, and shall be in effect for a period ten (10) years unless terminated by the Sangguniang Bayan for violation of the provisions of this Ordinance and other related regulations. Present franchise holder will have the options to renew on the prescribed latter prescribed days. Otherwise, it will pass on to the other interested applicants.

**Section 10. REQUIREMENT FOR APPLICATION OF PERMIT/LICENSE-** The following requirement must be fully complied before with the issuance of Permit/License:

A) For New Application- Every application to operate or maintain a cockpit shall be submitted to the Office of the Sangguniang Bayan concerned accompanied by the following requirements provided in Doing and Business Act pf 2018:

- (1) Proof of Business Registration from either SEC or DTI
- (2) Occupancy Permit
- (3) Contract of Lease (if lease)
- (4) Barangay Clearance
- (5) Basis for computing taxes, fees, and charges (ex. Income Tax Return)
- (6) Building Clearance
- (7) Sanitary Permit
- (8) Zoning Clearance
- (9) Police Clearance
- (10)BFP Clearance

B) For Renewal Application- The requirement for renewal shall be based on the following documents provided under DILG/DTI JMC No. 01-Series of 2016 dated August 30, 2016:

- (1) Basis for computing taxes, fees, and charges (ex. Income Tax Return)
- (2) Barangay Clearance
- (3) Sanitary Permit
- (4) Police Clearance
- (5) BFP Clearance

**Section 11. ANNUAL RENEWAL OF BUSINESS PERMIT-** Every application for the annual renewal of a license to operate or manage a cockpit to be shall be submitted to the Municipal Mayor on the First day of January or not later than 20<sup>th</sup> day of each year and shall be accompanied with the following:

- 1) Official Receipt showing payment of Municipal Taxes, Fees, and other Levies as prescribed in pertinent Municipal Ordinances.



- 2) In case the cockpit was constructed more than ten (10) years before the date of renewal application, a certificate from the Municipal Engineer to the effect that such cockpit is free from material, structural or other physical hazards.

**Section 12. COCKFIGHTING OFFICIALS-** The following cockfighting officials are required to register with the Office of the Municipal Mayor.

- (1) Promoters
- (2) Pit Managers
- (3) Referees (Sentenciadors/Kuymi)
- (4) Bit Managers (Kasadors/Monton)
- (5) Bet Takers (Kristo/Llamador/Masyador)
- (6) Gaffers (Mananare)
- (7) Cashiers or Gate-Keeper

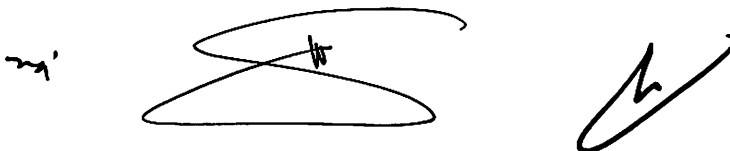
They shall not officiate as such in any regular or special cockfights herein authorized without first seeking the Mayor's Permit and renewal every year on or before January 20.

**Section 13. PERMIT REQUIRED FOR FILING SPECIAL COCKFIGHTS-** The following are the requisites for Special Permit:

- a) No special cockfights shall be allowed unless authorized by Special Permits from the Municipal Mayor subject to the approval of the Police Provincial Director. Application for such special shall be filed with the Office of the Municipal Mayor at least three (3) days before the event. Every application shall be signed by the owner-operator or the license cockpit where such special cockfights are to be held or by the sponsor in case the special cockfight shall be held in a place other than in a license cockpit.
- b) No international Cockfights may be held without permit or license from the Sangguniang Bayan and approved by the Municipal Mayor. The Sangguniang Bayan may authorize the promotion of International Cockfight Derbies for the support of fund-raising campaigns upon application of duly qualified promoters and countersigned by the owner/operator or license of the cockpit or sponsoring organization. Such application shall be at least seven (7) days before the scheduled International Cockfight Derby.

**Section 14. IMPOSITION OF FEES-** The local fees and charges herein prescribed shall be imposed to the following:

- |                                  |   |                                      |
|----------------------------------|---|--------------------------------------|
| 1) Annual Cockpit Permit Fee     | - | Three Thousand Pesos (Php3,000.00)   |
| 2) Cockpit Personnel Permit Fee: |   |                                      |
| (a) Promoter                     | - | Twenty Thousand Pesos (Php20,000.00) |
| (b) Pit Manager                  | - | Three Thousand Pesos (Php3,000.00)   |



- (c) Referee - One Thousand Pesos (Php1,000.00)
- (d) Bet Taker - One Thousand Pesos (Php1,000.00)
- (e) Bet Manager - One Thousand Pesos (Php1,000.00)
- (f) Gaffer - One Thousand Pesos (Php1,000.00)
- (g) Cashier - One Thousand Pesos (Php1,000.00)
- (h) Derby Matchmaker - One Thousand Pesos (Php1,000.00)
- 3) Special Permit Fee Special Cockfights (Pintakasi) per application - Two Thousand Five Hundred Pesos (Php2,500.00)
- 4) Special Derby Assessment from Promoters of:
  - (a) Two-Cock Derby - One Thousand Five Hundred Pesos (Php1,500.00)
  - (b) Three-Cock Derby - Two Thousand Pesos (Php2,000.00)
  - (c) Four-Cock Derby - Two Thousand Five Hundred Pesos (Php2,500.00)
- 5) Permit Fee for Ordinary Hack fight - One Thousand Pesos (Php1,000.00)
- 6) Permit Fee Sultador Aplinary - Two Hundred Pesos (Php200.00)
- 7) Fee Per Sultada on Special Derby - One Hundred Fifty Pesos (Php150.00)
- 8) Fee Per Sultada on Ordinary Hack Fight - Two Hundred Pesos (Php200.00)
- 9) International Derby (Per Day) - Ten Thousand Pesos (Php10,000.00)

**Section 15. PROHIBITIONS-** The following are prohibited inside the cockpit arena:

- a) Any form of Illegal gambling.
- b) Carrying of deadly weapons, except for security personnel and military authorities.
- c) Operation of other business activities within the premises of the cockpit arena without the Mayor’s Permit, aside from the operations of the cockpit using traditional sabong or traditional bet.
- d) Minors are not allowed to enter the cockpit area.
- e) Using Technology-Based Betting is strictly prohibited unless there is a law so provides.

**Section 16. PENAL PROVISIONS-** Violation of any provision of this ordinance shall have the following penalties:



|                |   |                                                          |
|----------------|---|----------------------------------------------------------|
| First Offense  | - | Two Thousand Five Hundred Pesos (Php2,500.00)            |
| Second Offense | - | one (1) month suspension of the operation of the Cockpit |
| Third Offense  | - | Revocation of Franchise                                  |

In case the owner or operator of a cockpit is a firm, company, or association, the person in-charge with the management of the business shall be liable for any accident and violation thereof.

**Section 17. SEPARABILITY CLAUSE-** If any provision of this Ordinance is declared unconstitutional or invalid, the remaining provisions not affected therewith shall be in force and effect.

**Section 18. REPEALING CLAUSE-** Any ordinance or parts of any ordinance inconsistent hereof are hereby deemed or modified accordingly.

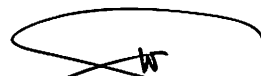
**Section 19. EFFECTIVITY CLAUSE-** This ordinance shall take effect ten (10) days after posting in a bulletin board at the entrance of the Government Center of LGU-Carmen, and in at least two (2) conspicuous places within the jurisdiction of Carmen, Surigao del Sur.

**ENACTED** this 30<sup>th</sup> day of July, 2024 at Carmen, Surigao del Sur.

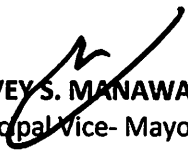
**I HEREBY ATTEST** to the correctness of the foregoing ordinance.

  
**MA. JULINA T. BORDA- JUTILO, LLB., J.D.**  
Secretary to the Sangguniang Bayan

**CERTIFIED CORRECT:**

  
**CARLOS S. ESTRADA**  
SB Member/  
Acting Municipal Vice-Mayor/  
Presiding Officer

**APPROVED:**

  
**HARVEY S. MANAWATAO**  
Municipal Vice- Mayor/  
Acting Municipal Mayor